

mandement which may come to them from us, or from any other, or by any other cause.

Agreeable to that great canon of the law anno 3 E. 1. which we have translated into Latin: *Rex præcipit quod pax sacrosanctæ ecclesiæ et regni jostidè custodiatur et conservetur in omnibus, quodq; justitia singularis tam pauperibus quam divitibus administratur, nulla habita personarum ratione.* See the second part of the Institutes, W. 1. cap. 1.

8 H. 4. the king hath committed all his power judiciall, some in one court, and some in another, so as if any would render himselfe to the judgement of the king in such case where the king hath committed all his power judiciall to others, such a render should be to no effect. And 8 H. 6. the king doth judge by his judges (the king having distributed his power judiciall to severall courts) and the king hath wholly left matters of judicature according to his lawes to his judges.

And albeit it be enacted that the delinquent shall be fined at the will of the king, *Non dominus rex in camera sua, nec aliter nisi per justiciarios suos (finem imponit) et hæc est voluntas regis, viz. per justiciarios et legem suam, unum est dicere.*

The second conclusion is, that in those dayes this court of kings bench did follow the court: and therefore Bracton calleth it *aulam regiam*, because they sat in the kings hall. Britton calleth the justices of this court, *justices assignes de nous suer*: and Fleta, *ubi tunc fuerimus in Anglia*.

The third is, that it is called the kings bench, and the pleas thereof *coram rege*: because in this court (as Bracton saith) those *capitales justiciarii proprias regis causas terminant*, and therefore the king himselfe cannot be judge in *propria causa*.

The fourth is, that under these words [*proprias causas*] are included three things. First, all pleas of the crowne; as all manner of treasons, felonies, and other pleas of the crown which *ex congruo*, are aptly called *proprie cause regis*, because they are *placita coronæ regis*. Secondly, regularly to examine and correct all and all manner of errors in *fact*, and in law, of all the judges and justices of the * realm in their judgements, processe, and proceeding in courts of record, and not only in pleas of the crown, but in all pleas, reall, personall, and mixt, (the court of the exchequer excepted, as hereafter shall appear.) And this is *procurum quarto modo* to the king in this court: for regularly no other court hath the like jurisdiction, and therefore may be well called *propria causa regis*. and these two be of high and soveraign jurisdiction. * Thirdly, this court hath not only jurisdiction to correct errors in judiciall proceeding, but other errors and misdemeanours extrajudiciall tending to the breach of the peace, or oppression of the subjects, or raising of faction, controversy, debate, or any other manner of misgovernment; so that no wrong or injury, either publick or private, can be done, but that this shall be reformed or punished in one court or other by due course of law. As if any person be committed to prison, this court upon motion ought to grant an *habeas corpus*, and upon returne of the cause do justice and relieve the party wronged. And this may be done though the party grieved hath no priviledge in this court. It granteth prohibitions to courts temporall and ecclesiasticall, to keep them within their proper jurisdiction. Also this court may baile any person for any offence

W. 1. 22. 3 E. 1.
cap. 1.
Fleta lib. 1.
ca. 29.

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8 H. 4. fo. 19.

8 H. 6. 20 & tit.
Grant. F. 5.

2 R. 3. fol. 12.

Of these you may read in Glanvil. lib. 1. cap. 2. Sec. & lib. 10. cap. 18. and in the third part of the Institutes per totum, & Stanf. per totum.

* And in Ireland of errors in the kings bench there. lib. 7. fo. 18. F. N. B. 22. 34. Ass. 7. 39 E. 3. Error 88. a Lib. 11. fo. 98. Jam. Baggescafe Vid. 10 E. 3. ca. 3. Mar-shallea.